IN THE HIGH COURT OF ORISSA AT CUTTACK

CRLMP Nos.2599 of 2022 and 26 of 2023

In the matters of applications under Articles 226 and 227 of the Constitution of India.

In CRLMP No.2599 of 2022

M/s ICICI Lombard General Insurance Co. Ltd., Bhubaneswar .... ***Petitioner***

-versus-

State of Odisha and Ors. .... ***Opposite Parties***

Advocates appeared in the case through Hybrid Mode**:**

For Petitioner : *Mr. Gautam Mishra, Sr. Adv. along with Mr. Anupam Dash, Adv.*

For Opposite Parties. : *Mr. D. Mund, AGA (for O.Ps. 1 to 3)*
Mr. Jagannath Patnaik, Sr. Adv. (for O.P.5)

In CRLMP No.26 of 2023

M/s ICICI Lombard General Insurance Co. Ltd., Bhubaneswar .... ***Petitioner***

-versus-

State of Odisha and Ors. .... ***Opposite Parties***

Advocates appeared in the case through Hybrid Mode**:**

For Petitioner : *Mr. Gautam Mishra, Sr. Adv. along with Mr. Anupam Dash, Adv.*

For Opposite Parties. : *Mr. D. Mund, AGA (for O.Ps. 1 to 3)*

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CORAM:
DR. JUSTICE S.K. PANIGRAHI

DATE OF HEARING:-16.05.2023
DATE OF JUDGMENT: -03.07.2023

Dr. S.K. Panigrahi, J.

1. Both the matters are taken up through hybrid arrangement.
2. Since both the aforementioned CRLMPs have been filed by the same Petitioner and the issues are same, this Court thinks it proper to dispose of both the CRLMPs in a common order.
3. In both the aforesaid CRLMPs, the Petitioner/ ICICI General Insurance Company seeks a direction from this Court to the Opposite Party No.2/ Additional Director General of Police, Criminal Investigation Department (CID), Crime Branch, Odisha, Cuttack and Opposite Party No.3/ Superintendent of Police, Criminal Investigation Department (CID), Crime Branch, Odisha, Cuttack to complete the investigation regarding false motor accident claims in Bariha P.S. Case No.9 of 2016, Keonjhar Town P.S. Case No.77 of 2016, Keonjhar Town P.S. Case No.145 of 2016, Keonjhar Town P.S. Case No.290 of 2015 and Keonjhar Town P.S. Case No.122 of 2015 within a stipulated time in view of the letter dated 19.07.2022 issued

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by the Opposite Party No.3/ Superintendent of Police, Criminal Investigation Department (CID), Crime Branch, Odisha, Cuttack. The Petitioner/ Company also seeks a direction from this Court to the Opposite Party Nos.1 and 3 to constitute a Special Investigation Team (SIT) to investigate the aforesaid cases.

4. Later, learned counsel for the Petitioner had also orally requested to hand over the aforesaid cases to the Central Bureau of Investigation (CBI) for investigation. Accordingly, he filed I.A. No.149 of 2023 in CRLMP No.2599 of 2022 to implead the CBI as Opposite Party. Accordingly, Mr. Sarthak Naik, learned Advocate for the CBI was also present on the date of hearing.

I. FACTUAL BACKDROP IN CRLMP NO.2599 OF 2022:

5. The Petitioner- M/s ICICI Lombard General Insurance Co. Ltd. is a General Insurance Company which operates in different parts of India including the State of Odisha. The Petitioner/ Insurance Company received notices in M.A.C. Case No.38/127 of 2017- 16 arising out of Keonjhar Sadar P.S. Case No. 77 of 2016, M.A.C. Case No.103 of 2016 arising out of Keonjhar Town P.S. Case No.145 of 2016, M.A.C. Case No.59 of 2016 arising out of Baria P.S. Case No.9 of 2016, M.A.C. Case No.185 of 2015 arising out of Keonjhar Town P.S. Case No.290 of 2015 and M.A.C. Case

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No.119 of 2015 arising out of Keonjhar Town P.S. Case No.122 of 2015.

6. All the aforesaid Motor Accidents Claim Cases are presently pending before the learned 4th MACT, Keonjhar. It may be mentioned here that M.A.C. Case No.38/127 of 2017-16 was filed by the present Opposite Party No.5 being the claimant, wherein the present Petitioner Insurance Company as well as the present Opposite Party No.4 have been arrayed as Opposite Parties. After receipt of the notice in the aforesaid claim cases, the Petitioner conducted a thorough scrutiny of the claims and it was revealed that one Keshab Chandra Mahanta, S/o. Khetrabasi Mahanta of village Dumurinali, P.S. Pandapada, Dist. Keonjhar has been arrayed as the accused driver in all the cases. It was further revealed that all the accidents have occurred within a span of one year and the driving license of the said accused driver was still valid instead of being cancelled. The Petitioner/ Company also noted that the accused driver named Keshab Chandra Mahanta had been arrested thrice within a period of one month. For the sake of clarity and convenience the details of the aforesaid M.A.C. Motor Vehicle Claim cases are extracted here under:

Sl. No.	Case No.	Date of Accident	FIR No. & Date of	Vehicle Details	Date of Arrest

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			Registration		
1.	M.A.C. Case No. 38/127 of 2017-16	16.03.2016	Keonjhar Sadar P.S. Case No.77 of 2016 dated 31.03.2016	One Tractor bearing Regd. No. OD-09B-6903, Registered Owner-Sulochana Khuntia	19.04.2016
2.	M.A.C. Case No.103 of 2016	08.05.2016	Keonjhar Town P.S. Case No.145 of 2016 dated 08.05.2016	Tractor and Trailer bearing Regd. No.OD 09 E3644, Regd. Owner Bijayananda Sahoo	10.05.2016
3.	M.A.C. Case No.59 of 2016	14.02.2016	Baria (Dist. Keonjhar) P.S. Case No.09 of 2016 dated 14.02.2016	Tractor having no number	31.03.2016
4.	M.A.C. Case No.185 of 2015	12.10.2015	Keonjhar Town P.S. Case No.290 of 2015 dated 12.10.2015	Tractor bearing Regd. No.OD-09E-5121 and Trolley bearing regd. No.OD-09E-5122, Regd. Owner Sarojkanta Behera	10.11.2015
5.	M.A.C. Case	23.04.2015	Keonjhar Town P.S.	Tractor bearing	30.04.2015

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	No.119 of 2015		Case No.122 of 2015	Regd No.OR-09-M-5514 and Trailer bearing Regd. No.OR-09-M-5515, Regd. Owner Sarojini Samanta	

7. In view of the facts narrated in the forgoing paragraph and since the Petitioner/ Company had every reason to believe that the claimants were filing false cases by implanting the same driver and apprehending that there were fraud Claims to misappropriate crores of rupees of public money, the Petitioner Company addressed a letter dated 07.09.2017 to the Central Bureau of Investigation, Bhubaneswar for carrying out necessary investigation. It may be mentioned at this juncture that the CBI, Bhubaneswar in turn forwarded the application of the Petitioner to the office of the present Opposite Party No.2 to carry out the investigation.

8. On 14.06.2022 the present Petitioner addressed a letter to the C.B.I., Bhubaneswar and also marked the same to the present Opposite Party No.2 requesting the authorities to

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provide the status of the investigation pursuant to the letter dated 07.09.2017.

9. It would be relevant to mention herein that vide letter dated 19.07.2022, the present Opposite Party No.3 replied to the letter of the Petitioner and stated that though investigation has been made by the DSP Rank officers of CID, CB, Cuttack, but still further investigation remains to be done and also initiation of appropriate departmental action against the erring police officers also remains to be done.

10. The Opposite Party Nos.2 and 3 have failed to realise the gravity and seriousness of the situation that the present Petitioner/Company is being duped for crores of money in fake insurance claims which is public money.

11. The Opp. Party No.5 being the claimant has instituted a case under Section 166 of the Motor Vehicles Act, 1988 against the Opposite Party No.4, the owner and the present Petitioner/Company being the insurer vide M.A.C. Case No. 38/127 of 2017-16 which is presently pending before the learned 4th MACT, Keonjhar. In the said case, the present Petitioner filed an application on 06.09.2022 for deferring the case till the completion of investigation by the Crime Branch, Cuttack.

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12. The learned 4th MACT, Keonjhar vide order dated 02.11.2022 rejected the petition dated 06.09.2022 filed by the Petitioner.

II. FACTUAL BACKDROP IN CRLMP NO.26 OF 2023:

13. The Petitioner/ Insurance Company received notices in M.A.C. Case No.38/103 of 2019-16 arising out of Keonjhar Town P.S. Case No.145 of 2016, M.A.C. Case No.38/127 of 2017-16 arising out of Keonjhar Sadar P.S. Case No.77 of 2016, M.A.C. Case No. 59 of 2016 arising out of Baria P.S. Case No. 9 of 2016, M.A.C. Case No.185 of 2015 arising out of Keonjhar Town P.S. Case No. 290 of 2015 and M.A.C. Case No. 119 of 2015 arising out of Keonjhar Town P.S. Case No.122 of 2015. All the aforesaid Motor Accidents Claim Cases are presently pending before the learned 4th MACT, Keonjhar. It may be mentioned here that M.A.C. Case No.38/103 of 2019-16 arising out of Keonjhar Town P.S. Case No.145 was filed by the present Opposite Party Nos.6 and 7 being the claimants, wherein the present Petitioner/ Insurance Company as well as the present Opposite Party Nos.4, 5 and 8 have been arrayed as Opposite Parties. It may be mentioned here that alongwith Opposite Party Nos.6 and 7, Haguru Patra and Pramod Patra were also arrayed as claimants but during the pendency of M.A.C. Case No.38/103 of 2019-16, they died

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and, hence, they have not been arrayed as Opposite Parties in the present CRLMP. That after receipt of notice in the aforesaid claim cases, the Petitioner conducted a thorough scrutiny of the claims and it was revealed that one Keshab Chandra Mahanta, S/o. Khetrabasi Mahanta of village Dumurinali, P.S. Pandapada, Dist. Keonjhar was arrayed as the accused driver in all the cases and it was further found out that all the accidents have occurred within a span of one year. The driving licence of the said accused driver was still valid instead of being cancelled. The Petitioner company also noted that the accused driver named Keshab Chandra Mahanta had been arrested thrice within a period of one month. For the sake of clarity and convenience the details of the aforesaid M.A.C. Motor Vehicle Claim cases are extracted here under:

Sl. No.	Case No.	Date of Accident	FIR No. & Date of Registration	Vehicle Details	Date of Arrest
1.	M.A.C. Case No. 38/127 of 2017-16	16.03.2016	Keonjhar Sadar P.S. Case No.77 of 2016 dated 31.03.2016	One Tractor bearing Regd. No. OD-09B-6903, Registered Owner-Sulochana Khuntia	19.04.2016
2.	M.A.C. Case No.38/	08.05.2016	Keonjhar Town P.S. Case	Tractor and Trailer bearing	10.05.2016

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	103 of 2019-16		No.145 of 2016 dated 08.05.2016	Regd. No.OD 09 E3643, Regd. Owner Bijayananda Sahoo	
3.	M.A.C. Case No.59 of 2016	14.02.2016	Baria (Dist. Keonjhar) P.S. Case No.09 of 2016 dated 14.02.2016	Tractor having no number	31.03.2016
4.	M.A.C. Case No.185 of 2015	12.10.2015	Keonjhar Town P.S. Case No.290 of 2015 dated 12.10.2015	Tractor bearing Regd. No.OD-09E-5121 and Trolley bearing regd. No.OD-09E-5122, Regd. Owner Sarojkanta Behera	10.11.2015
5.	M.A.C. Case No.119 of 2015	23.04.2015	Keonjhar Town P.S. Case No.122 of 2015	Tractor bearing Regd No.OR-09-M-5514 and Trailer bearing Regd. No.OR-09-M-5515, Regd. Owner Sarojini Samanta	30.04.2015

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14. In view of the facts narrated in the forgoing paragraph and since the Petitioner/ Company had every reason to believe that the claimants were filing false cases by implanting the same driver and apprehending that there were fraud Claims to misappropriate crores of rupees of public money, the Petitioner Company addressed a letter dated 07.09.2017 to the Central Bureau of Investigation, Bhubaneswar for carrying out necessary investigation. It may be mentioned at this juncture that the CBI, Bhubaneswar in turn forwarded the application of the Petitioner to the office of the present Opposite Party No.2 to carry out the investigation.

15. On 14.06.2022 the present Petitioner addressed a letter to the C.B.I., Bhubaneswar and also marked the same to the present Opposite Party No.2 requesting the authorities to provide the status of the investigation pursuant to the letter dated 07.09.2017.

16. It would be relevant to mention herein that vide letter dated 19.07.2022, the present Opposite Party No.3 replied to the letter of the Petitioner and stated that though investigation has been made by the DSP Rank officers of CID, CB, Cuttack, but still further investigation remains to be done and also initiation of appropriate departmental

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action against the erring police officers also remains to be done.

17. The Opposite Party Nos.2 and 3 have failed to realise the gravity and seriousness of the situation that the present Petitioner/Company is being duped for crores of money in fake insurance claims which is public money.

18. The Opp. Party Nos.6 and 7 being the claimant have instituted a case under Section 166 of the Motor Vehicles Act, 1988 against the Opposite Party Nos.4, 5 and 8 and the present Petitioner/Company being the insurer vide M.A.C. Case No. 38/103 of 2019-16 which is presently pending before the learned 4th MACT, Keonjhar. In the said case, the present Petitioner filed an application on 18.02.2020 for deferring the case till the completion of investigation by the Crime Branch, Cuttack.

19. The learned 4th MACT, Keonjhar vide order dated 29.11.2021 rejected the petition dated 18.02.2020 filed by the Petitioner.

III. SUBMISSIONS ON BEHALF OF THE PETITIONER:

20. Learned counsel for the Petitioner/ Company submitted that the C.I.D., Crime Branch vide letter dated 19.07.2022 had communicated to the Petitioner/Insurance Company that the concerned Superintendent of Police have been

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directed to take appropriate departmental action against the erring Police Officers.

21. He further submitted that a bare perusal of the F.I.Rs. and the corresponding charge-sheets under Annexure-1 Series (pages 16 to 57 in CRLMP No.2599 of 2022) would indicate that the F.I.Rs. were lodged against unknown persons. However, only one person namely Keshab Chandra Mahanta has been charge-sheeted as the accused driver in all the cases which took place within a span of one year. In this backdrop, a perusal of the letter dated 25.08.2020 under Annexure-A/3 to the Counter-affidavit filed by the Opposite Party Nos.2 and 3 (Page 7 and 8 of the Counter-Affidavit in CRLMP No.2599 of 2022) would clearly show that the C.I.D., Crime Branch has clearly stated that

> *"It is highly improbable that only one driver namely Keshab Chandra Mahanta caused so many accidents within a span of 12 months which resulted in death of 4 persons as well as grievous and simple hurts to others which appeared to have been arranged by the I.Os. It was also stated by the C.I.D., Crime Branch to take necessary legal action against the erring public servants such as the I.O. and the Medical Officer and persons who have filed MACT Case for wrongful gain."*

22. It is also submitted that a perusal of the series of letters under Annexure-A/3 and Annexure-B/3 Series to the

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Counter-Affidavit filed by the Opposite Party Nos.2 and 3, the C.I.D., Crime Branch has repeatedly communicated to the Superintendent of Police, Keonjhar to entrust a Senior Officer of the Headquarters to further investigate into the cases as mentioned therein and also to report regarding the progress of the investigation. Since no action was being taken by the Superintendent of Police, Keonjhar in spite of repeated request, it was stated in the letter dated 07.02.2023 to take necessary action at the earliest and the action taken report may be sent at the earliest since this Court is in seisin of the subject matter and is pressing hard for action taken report.

23. It was only after such repeated communications and only because the various orders i.e. orders dated 02.01.2023, 11.01.2023, 25.01.2023, 10.02.2023 passed by this Court in CRLMP No.2599 of 2022 directing the State Government to file the counter-affidavit, the concerned I.Os. filed petitions before the concerned learned S..D.J.Ms. seeking permission under Section 173 (8) of the Code of Criminal Procedure, 1973 to reopen the cases for further investigation which have also been allowed by the concerned S.D.J.Ms.

24. Learned counsel for the Petitioner/ Company also submitted that from the aforesaid materials on record, it is clear that Police Officers were hand in gloves with the

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claimants in facilitating grabbing of insurance money which is public money. Since the I.Os. were involved, it can safely be presumed that in spite of repeated communications from C.I.D., Crime Branch to the Superintendent of Police, Keonjhar starting from the year 2020, no action was taken for further investigation in the matters long since till the time the matter came up before this Court in the present cases.

25. A perusal of the cases mentioned in the Additional Affidavit filed by the Petitioner which is at 'Flag B' of CRLMP No.2599 of 2022 and list of additional cases which is being appended to the present note would show that the modus operandi adopted for filing of fake compensation petitions are (a) fabricated medical documents for claiming compensation (b) fraudulent implantation of vehicle (c) claimant implantation (d) false implantation of driver. As a matter of illustration, with respect to the case number mentioned in Sl. No. (A) of the Additional Affidavit, the EOW, Bhubaneswar communicated to the Superintendent of Police, Khurda vide letter dated 15.02.2018 that enquiry made by the EOW has revealed that forged and fabricated medical examination report has been entertained by the I.O. with respect to Khurda P.S. Case No.365 of 2010 to

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enable the injured persons to claim insurance to the tune of lakhs.

26. Learned counsel for the Petitioner/ Company further submitted that the total claim amount of the cases mentioned in both the CRLMPs, in the said Additional Affidavit and the list appended would show to the tune of Rs.5,01,25,000/- (Rupees Five Crores One Lakh and Twenty Five Thousand).

27. He further submitted that the aforesaid cases may be handed over to the Central Bureau of Investigation (CBI) for investigation. The Petitioner has also filed I.A. No.149 of 2023 in CRLMP No.2599 of 2022 to implead the CBI as Opposite Party.

28. He placed reliance in the case of ***Safiq Ahmad v. ICICI Lombard General Insurance Co. Ltd***.[1] wherein the Supreme Court had categorically observed that the situation is very alarming so far as false and fabricated cases are concerned and had also issued notice to Registrar General of all High Courts while dealing with fake compensation claim cases. In support of his stand with regard to investigation by the C.B.I., learned counsel for the Petitioner also placed reliance in ***R.S. Sodhi v. State of Punjab***[2], ***Inder Singh v.***

[1] Order dated 5.1.2017 in SLP (C) No. 1110 of 2017
[2] AIR 1994 SC 38 (Para 2)

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State of Punjab[3], *State of Punjab v. Central Bureau of Investigation and others*[4] and *Subrata Chhatoraj v. Union of India*[5].

IV. SUBMISSIONS ON BEHALF OF THE O.PS.1 TO 3:

29. Pursuant to the direction of this Court in CRLMP No.2599 of 2022, learned counsel for the State filed counter affidavit submitting therein that the office of the Superintendent of Police, CID, CB, Odisha, Cuttack has received the petition of ICICI Lombard on 08.07.2017. Sri Rabindranath Mohanty, DSP, CID, CB, Cuttack was entrusted with the enquiry into the petition in which it was alleged that accused-driver Keshaba Chandra Mohanta was shown involved as accused in five similar accidental cases i.e. in MAC No.38/127 of 2017-16 (arising out of Keonjhar Sadar P.S. Case No.77 of 2016), MAC No.103 of 2016 (arising out of Keonjhar Sadar P.S. Case No.145 of 2016), MAC No.59 of 2016 (arising out of Baria P.S. Case No.9/2016), MAC No.185 of 2015 (arising out of Keonjhar Town P.S. Case No.290/2015) and MAC No.119 of 2015 (arising out of Keonjhar Town P.S. case No.122/2015) and Charge Sheets were submitted against him in all the cases. Petitioner

[3] AIR 1995 SC 312 (Paras 5 and 17)
[4] AIR 2011 SC 2962 (Paras 17 & 18)
[5] 2014 AIR SCW 2828 (Para 31)

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suspected regarding implantation of driver Keshaba Chandra Mohanta in the above noted cases and requested for needful action.

30. It was submitted that one Sri Rabindranath Mohanty, DSP, CID, CB, Cuttack conducted the enquiry into the matter and submitted enquiry report on 31.01.2018 in which he viewed that it is highly improbable that driver Keshaba Chandra Mohanta causing so many vehicular accidents with a span of 12 months resulting in death of 4 persons as well as grievous and simple injuries to others and he might have been implanted by the claimants for their wrongful gain.

31. It was further submitted that the Superintendent of Police, Keonjhar was requested to reopen of the aforesaid cases for further investigation into the matter vide letter No.22345/CID-CB.SR-D (Fraud) dated 25.08.2020 with a request to investigate the case on merit and take necessary legal action against the erring public servants such as I.O., Medical Officer and persons involved, if any.

32. It was mentioned that as no correspondence received from the Superintendent of Police, Keonjhar, he was reminded several times vide letter No.4483/CID-CB.SR- D(Fraud) dated 04.03.2022, letter No.12042/CID- CB.SR-D(Fraud) dated 14.07.2022, letter No.842/CID- CB.SR-D(Fraud) dated

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16.01.2023, letter No.2381/CID- CB.SR-D(Fraud) dated 16.02.2023. The Superintendent of Police, CID, CB, Cuttack has also requested to furnish the action taken report vide letter No.1920/CID-SR-D(Fraud) dated 07.02.2023.

33. In the meantime, the concerned Inspectors- in-Charge of Keonjhar Town P.S., Keonjhar Sadar P.S. and Baria P.S. have filed their respective applications before the concerned learned S.D.J.Ms. seeking permission for reopening of the cases.

34. After considering such applications, the learned S.D.J.M., Keonjhar and S.D.J.M., Champua have directed the Investigating Officers for further report or reports regarding any further evidence, oral or documentary in the form prescribed.

35. It was also submitted that the Superintendent of Police, Keonjhar has sent intimation that they have reopened the above noted five cases for further investigation vide letter No.809/DCRB-Cr dated 28.02.2023. The Superintendent of Police, CID, Crime Branch has also sent intimation vide letter No.3192 dated 03.03.2023 to the Superintendent of Police, Keonjhar for furnishing certified copies of orders passed by the learned S.D.J.M., Keonjhar and learned S.D.J.M., Champua in the above referred cases in the matter of reopening of the cases for further investigation.

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Pursuant to the above said letter, the Superintendent of Police, Keonjhar has sent the certified copy of orders passed by the learned S.D.J.M., Keonjhar and learned S.D.J.M., Champua in the above referred case on 04.03.2023.

36. Learned counsel for the State further submitted that the Government has taken a precautionary measure in order to prevent the fake accident cases. The Additional D.G. of Police, CID, CB, Odisha, Cuttack has issued advisory to all Districts on 27.11.2019. The said Advisory dated 27.11.2019 issued by the Additional D.G. of Police, CID, CB, Odisha, Cuttack is quoted below:

"ODISHA POLICE
CRIMINAL INVESTIGATION DEPARTMENT
CRIME BRANCH

No. 41827/ CID-PRS *Date: 27-11-2019*

To

All District SSP including SSRP Rourkela/Cuttack / DCSP, Cuttack/ Bhubaneswar UPD.

Sub:- Advisory to prevent fake Insurance claims.

Instances have come to notice that false vehicle accident cases are registered in different police stations of the State to facilitate fake Insurance claim by the fraudulent claimants, in connivance with local police, Govt. doctors and other middlemen/ brokers. The Hon'ble High Court while hearing a matter of Insurance fraud in CRLMP No. 1209 of 2019 filed by ICICI Lombard General Insurance Company Limited -Vrs- State of Odisha and others has directed the State to intimate about the remedial measures taken to

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prevent filing of false accident cases and Insurance claims.

In order to prevent such fake accident cases and consequential insurance claims for claiming Insurance in illegal and arbitrary manner, the following instructions are imparted for strict adherence to curb menace of such issue.

1. *In all accident cases, I.Os shall visit spot immediately. Photography / Videography of scene of crime and Involved vehicles shall be taken. FIRS of MV accidents being reported after delay of 5-7 days should be looked into suspiciously and meticulously investigated, supervised by a G.O. to ascertain merit of such type of cases.*
2. *All accident cases should be reviewed by a police officer of DSP rank before submission of FF.*
3. *The doctors should be sensitized to record brief of the accident including the category of vehicle causing the accident.*
4. *The I.O. while verifying the Insurance details of the offending vehicle will Immediately intimate the concerned Insurance Company with regard to details of Injured and dead persons.*
5. *The I.O. will take immediate steps for cancellation of DL of the driver of the offending vehicle.*
6. *CCTV footage, if available in respect of the occurrence shall be collected by the I.O. supported with certificate U/s 65-B evidence Act. 7. If driver of the offending vehicle is arrested, his photographs with other Identity details will be kept in the case record.*
8. *In the FF, all previous cases of vehicular accident caused by the driver will be mentioned by the I.O.*
9. *GPS system may be encouraged In all public transport vehicles to prevent Instances of planted vehicles in accident cases.*
10. *In vehicular accidents, claim under Workmen Compensation Act by some persons are found to be suspicious. The I.Os have to collect unimpeachable evidence to prove engagement of the injured /deceased as a workman employed by the owner.*

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11. The Samaritan people who use to rescue the accident victims and shift them to hospital for treatment should not be harassed at any cost.

12. The fire brigade and ambulance staff associated in service for rescue and immediate shifting of injured persons to hospital may be examined in accident cases.

13. Police officers found to frame documents incorrectly during investigation must be dealt stringently under provisions of IPC etc.

I urge upon your personal supervision in these important aspects to curb down registration of false accident cases and filing of fake Insurance claims thereof.

Sd/-
(S. Upadhyay)
Addl. D.G. of Police, CID, CB. Odisha, Cuttack"

V. SUBMISSIONS ON BEHALF OF THE OPPOSITE PARTY NO.5:

37. Learned counsel for the Opposite Party No.5 submitted that the present case is not maintainable against this Opposite Parties in view of specific finding of the learned Presiding Officer i.e. 4th MACT, Keonjhar vide order dated 02.11.2022 passed in MAC Case No. 38/127 of 2017-16 to the extent "***so there is no material to hold that the present case is a false one***". The case is not maintainable due to non-joinder/mis-joinder of necessary parties, because accused driver Keshab Chandra Mohanty has not been impleaded as Opposite Party in this case. This case is also not maintainable since the enquiry has already been taken up and the same has progressed a lot by the Opposite Party Nos.2 and 3 respectively i.e. Addl. Director General

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of Police, Criminal Investigation Department (CID), Crime Branch, Odisha, Cuttack, AT - Buxi Bazar, Cuttack - 753001, Odisha and Superintendent of Police, Criminal Investigation Department (CID), Crime Branch, Odisha, Cuttack, AT - Buxi Bazar, Cuttack - 753001. The enquiry of CID Crime Branch is being scrutinized by CBI from time to time.

38. He further submitted that the Petitioner in his letter dated 07.09.2017 has written to the Superintendent of Police, Central Bureau of Investigation, Unit - 8, PO - Nayapalli, Bhubaneswar, Dist - Khurda, Odisha, for enquiry on following 5 cases.

1. Keonjhar Town PS Case No. 290/2015.
2. Keonjhar Town PS Case No. 145/2016.
3. Keonjhar Town PS Case No. 122/2015.
4. Keonjhar Sadar PS Case No. 77/2016.
5. Baria PS Case No. 09/2016.

39. The Petitioner has alleged that the above 5 cases are false because in all the 5 cases, the accused driver is one and he is none but Keshab Chandra Mohant. The petitioner has also written to the Superintendent of Police, Central Bureau of Investigation, Unit - 8, PO - Nayapalli, Bhubaneswar, Dist. - Khurda, Odisha on 14.06.2022 to know the status of their letter dated 07.09.2017. The

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Opposite Party No.3 i.e. the SP, CID, CB, Odisha, Cuttack vide letter dated 19.07.2022 has written to the Petitioner which his self explanatory. The Opposite Party No.3 informed to the Petitioner that enquiry is being made by the DSP of Crime Branch as per direction of the Additional Director of Police and the concerned SP has been requested to reopen the case for further investigation and initiate departmental action against the concerned erring police officer. The Opposite Party No.3 further stated that the report from the concerned police officer is still awaited.

40. It was also submitted that the Petitioner filed a petition before the Learned 4th MACT, Keonjhar in MAC Case No. 38/127 of 2017-18 on 18.11.2022 seeking for time for adjournment of hearing of MACT Case on the ground of receipt of enquiry report from the Crime Branch. Learned 4th MACT, Keonjhar was passed an order on 02.11.2022 and rejected their petition on the ground "so there is no material to hold that the present case is a false one". The enquiry has already been taken by CID, Crime Branch under the scrutiny of CBI, Bhubaneswar on alleged 5 cases vide letter dated 07.09.2017 and three more cases also. In view of such facts stated above the Opposite Party Nos. 2 and 3 may please be directed to complete the enquiry within a specific period.

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VI. COURT'S REASONING AND ANALYSIS:

41. At the outset, the prayer made by the Petitioner in I.A. No.149 of 2023 arising out of CRLMP No.2599 of 2022 to implead the CBI as Opposite Party is allowed. The CBI is impleaded as Opposite Party No.6 in CRLMP No.2599 of 2022.

42. In both the CRLMPs, the Petitioner/ Company's grievance is for a direction to the Opposite Party Nos.2/ Additional Director General of Police, Criminal Investigation Department (CID), Crime Branch, Odisha, Cuttack and 3/ Superintendent of Police, Criminal Investigation Department (CID), Crime Branch, Odisha, Cuttack to complete the investigation regarding false motor accident claims in Bariha P.S. Case No.9 of 2016, Keonjhar Town P.S. Case No.77 of 2016, Keonjhar Town P.S. Case No.145 of 2016, Keonjhar Town P.S. Case No.290 of 2015 and Keonjhar Town P.S. Case No.122 of 2015 within a stipulated time.

43. A perusal of the letter dated 25.08.2020 to the Counter-affidavit filed by the Opposite Party Nos.2 and 3 (Page 7 and 8 of the Counter-Affidavit in CRLMP No.2599 of 2022) would clearly show that the C.I.D., Crime Branch has clearly stated that

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> *"It is highly improbable that only one driver namely Keshab Chandra Mahanta caused so many accidents within a span of 12 months which resulted in death of 4 persons as well as grievous and simple hurts to others which appeared to have been arranged by the I.Os. It was also stated by the C.I.D., Crime Branch to take necessary legal action against the erring public servants such as the I.O. and the Medical Officer and persons who have filed MACT Case for wrongful gain."*

44. Learned Counsel of the petitioner has pointed out that in a series of letters to the C.I.D., Crime Branch has repeatedly communicated to the Superintendent of Police, Keonjhar to entrust a Senior Officer of the Headquarters to further investigate into the cases as mentioned therein and also to report regarding the progress of the investigation. Since no action was being taken by the Superintendent of Police, Keonjhar in spite of repeated request, it was stated in the letter dated 07.02.2023 to take necessary action at the earliest and the action taken report may be sent at the earliest since this Court is in seisin of the subject matter and is pressing hard for action taken report.

45. It was only after such repeated communications and only because the various orders i.e. orders dated 02.01.2023, 11.01.2023, 25.01.2023, 10.02.2023 passed by this Court in CRLMP No.2599 of 2022 directing the State Government to file the counter-affidavit, the concerned I.Os. filed petitions

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before the concerned learned S.D.J.Ms. seeking permission under Section 173 (8) of the Code of Criminal Procedure, 1973 to reopen the cases for further investigation which have also been allowed by the concerned S.D.J.Ms.

46. In ***Vineet Narain v. Union of India***[6], the Supreme Court had held that:

> *"8. The sum and substance of these orders is that the CBI and other governmental agencies had not carried out their public duty to investigate the offences disclosed; that none stands above the law so that an alleged offence by him is not required to be investigated; that we would monitor the investigations, in the sense that we would do what we permissibly could to see that the investigations progressed while yet ensuring that we did not direct or channel those investigations or in any other manner prejudice the right of those who might be accused to a full and fair trial. We made it clear that the task of the monitoring court would end the moment a charge-sheet was filed in respect of a particular investigation and that the ordinary processes of the law would then take over. Having regard to the direction in which the investigations were leading, we found it necessary to direct the CBI not to report the progress of the investigations to the person occupying the highest office in the political executive; this was done to eliminate any impression of bias or lack of fairness or objectivity and to maintain the credibility of the investigations."*

[6] (1998) 1 SCC 226

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47. It is also a cause of concern that It was mentioned that as no correspondence received from the Superintendent of Police, Keonjhar, he was reminded several times vide letter No.4483/CID-CB.SR- D(Fraud) dated 04.03.2022, letter No.12042/CID- CB.SR-D(Fraud) dated 14.07.2022, letter No.842/CID- CB.SR-D(Fraud) dated 16.01.2023, letter No.2381/CID- CB.SR-D(Fraud) dated 16.02.2023. The Superintendent of Police, CID, CB, Cuttack has also requested to furnish the action taken report vide letter No.1920/CID-SR-D (Fraud) dated 07.02.2023. The tardy response from the Superintendent of Police to the CB-CID speaks volume about the non-sensitivity on the part of the State Police to go into the issue in a proper manner.

48. Learned counsel for the Petitioner has also alleged that from the aforesaid materials on record, it is clear that Police Officers were hand in gloves with the claimants in facilitating grabbing of insurance money which is public money. Since the I.Os. were involved, it can safely be presumed that in spite of repeated communications from C.I.D., Crime Branch to the Superintendent of Police, Keonjhar starting from the year 2020, no action was taken for further investigation in the matters long since till the time the matter came up before this Court in the present cases.

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49. Moreover, the total claim amount of the cases mentioned in both the CRLMPs, in the said Additional Affidavit and the list appended would show to the tune of Rs.5,01,25,000/- (Rupees Five Crores One Lakh and Twenty Five Thousand). It is also submitted that the size and scale of the crime goes far beyond the present case.

50. Therefore, considering the scale, magnitude and complexity of the crime, this Court is of the opinion that the State police is not in a position to carry out a fair and truthful investigation. The CBI is well equipped with the requisite skill to unearth the conspiracy and money trailing aspect of the crime. Therefore, this Court directs that the aforesaid cases be handed over to the CBI for investigation in the interest of justice in exercise of its inherent powers and in the spirit of the apex Court's judgment in ***Safiq Ahmad v. ICICI Lombard General Insurance Co. Ltd.*** *(supra)*.

51. Accordingly, both the CRLMPs are disposed of.

(Dr. S.K. Panigrahi)
Judge

Orissa High Court, Cuttack,
Dated the 3rd July , 2023/B. Jhankar

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